

The Anna University Act, 1978

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State of Tamilnadu- Act

The Anna University Act, 1978

TAMILNADU

India

The Anna University Act, 1978

Act 30 of 1978

Published on 11 June 2010

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The Anna University Act, 1978

Tamil Nadu Act

30 of 1978

Statement of Objects and Reasons - Anna University, Chennai (Amendment) Act, 2010. - While moving the Demand for Higher Education Department for the year 2009-2010 on 23.6.2009, it has been announced, among other things, that a World Class Research University will be established comprising the constituent colleges of the Anna University, Chennai, as Unitary type University. To give effect to die above said announcement, it has been decided to amend die Anna University, Chennai Act, 1978 (Tamil Nadu Act

30 of 1978

) Suitably.

2. The Bill seeks to give effect to the above decision.

Statement of Objects and Reasons - Anna University (Amendment) Act, 2013. - The Second Proviso to subsection (3) of Section 11 of the Anna University Act, 1978 (Tamil Nadu Act 30 of 1978

) provides that die Vice-Chancellor of Anna University shall retire from office, if during the term of his office, he completes die age of Sixty-five years. Now, the Government have decided to amend the said Tamil Nadu Act 30 of 1978

to raise the retirement age of the Vice-Chancellor of Anna University from sixty-five years to seventy years on par with the Central Universities Act, 2009 (Central Act 25 of 2009), so as to utilize the knowledge gained by academicians for the enrichment of higher education in engineering, technology and allied sciences in the State.

2. The Bill seeks to give effect to the above decision.

An act to provide for the establishment of a University of Technology in the State of Tamil Nadu.

Be it enacted by the Legislature of the State of the Tamil Nadu in the Twenty-ninth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

This Act may be called [Anna University Act]

[Substituted for 'Anna University, Chennai Act' by Act No. 24 of 2010, dated 11.6.2010.]
, 1978.

(2)

It shall come into force on such date as the Government may, by notification, appoint.

[* * *]

[Section 1A omitted by Act No. 24 of 2010, dated 11.6.2010.]

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

["appointed day" means such date as the Government may, by notification, appoint under sub-section (2) of Section 1;
[Clauses (a), (aa), (ab), (ac), (ad), (ae), (b), (c) and (d) substituted by Act No. 24 of 2010, dated 11.6.2010.]

(b)

"constituent college" means any institution specified in Schedule I;

(c)

"Dean" means the Dean of each Faculty;

(d)

"Director" means the head of a constituent college, the head of research and development or the head of every centre of Advanced Study, as may be prescribed;]

(e)

"Faculty" means a Faculty of the University;

(f)

"Government" means the State Government;

(g)

"hostel" means a unit of residence for students of the University maintained or recognized by it either as a part of, or separate from, a constituent college;

(h)

"Prescribed" means prescribed by the statutes, ordinances or regulations made under this Act;

[* * *]

[Clause (ha) omitted by Act No. 24 of 2010, dated 11.6.2010.]

(i)

"State" means the State of Tamil Nadu;

(j)

"regulations", "ordinances" and "regulations" mean, respectively, the statutes, ordinances and regulations of the University made or continued in force under this Act;

(k)

["teachers" mean such Assistant Professors, Associate Professors, Professors, Deans, Directors and other like persons as may be declared by the statutes to be teachers;]

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

(l)

"University" means the [Anna University]

[Substituted by Tamil Nadu Universities Laws (Amendment) Act, 1982 (Tamil Nadu Act 26 of 1981).]

established under section 3;

[* * *]

[Clause (m) omitted by Act No. 24 of 2010, dated 11.6.2010.]

Chapter II

University

3.

Establishment of the University.

(1)

For the development of engineering, technology and allied sciences and for furthering the advancement of learning and prosecution of research in engineering, technology and allied sciences, on and from the appointed day, there shall be established a University [by the name of Anna University of Technology]

[Substituted by Tamil Nadu Universities Laws (Amendment) Act, 1982 (Tamil Nadu Act 26 of 1982).]

.

(2)

The University shall be a body corporate, shall have perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

[The University shall be of the unitary type and shall comprise of the College of Engineering, Guindy, Chennai and the institutions specified in Schedule I.

(4)

The jurisdiction of the University shall extend to the whole area comprised in the Chennai Metropolitan Planning Area as defined in Clause (23-a) of Section 2 of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972

) and the University may establish campuses at such places within its jurisdiction as it may deem fit.]

[Inserted by Act No. 24 of 2010, dated 11.6.2010.]

(5)

No institution affiliated to or associated with or maintained by any other University in the State shall be recognized by the University for any purpose except with the prior approval of the Government and the concerned University.

(6)

The principal seat of the University shall be the College of Engineering, Guindy, Chennai, or any other place which the Government may, by notification, specify in this behalf.

4.

Objects of the University.

- The University shall have the following objects, namely:-

(i)

to provide facilities and offer opportunities for higher education in engineering, technology and allied sciences by instruction, training, research, development and extension and by such other means as the University may deem fit;

(ii)

to devise and implement a programme of education in engineering, technology and allied sciences that is relevant to the current needs of the society, alive to the long term requirements and responsive to the anticipated changes and developments, in terms of breadth of diversity and depth of specialization;

(iii)

to further the advancement of knowledge in engineering, technology and allied sciences; to prosecute and promote research; to disseminate and advance the knowledge thereon for the betterment of society and to bring about a widespread awareness of the tools and methods continuously generated by the advances in engineering, technology and allied sciences; and

(iv)

to serve as a centre for fostering co-operation and exchange of ideas between the academic and research community on the one hand and the industrial and Government employers on the other and to promote entrepreneurship among the students.

5.

Power and functions of the University.

- The University shall have the following powers and functions, namely:-

(a)

to provide for instruction and training in engineering, technology and allied sciences;

(b)

to provide for research and for advancement and for dissemination of knowledge in engineering, technology and allied sciences;

(c)

to institute degrees, diplomas and other academic distinctions in engineering, technology and allied sciences;

(d)

to hold examinations and confer degrees, diplomas and other academic distinction on person who have -

(i)

pursued a prescribed course of study; or

(ii)

carried out research in the University or in any other centre or institution recognized by the University under the prescribed conditions;

(e)

to confer honorary degrees or other academic distinctions in the prescribed manner and under the prescribed conditions;

(f)

to prescribe conditions under which the award of any degree, diploma and other academic distinctions to persons may be withheld;

(g)

to act as coordinator among the constituent colleges, laboratories and institutions of the University;

(h)

to recognize an institution of higher learning for such purposes as the University may determine and to withdraw such recognition;

(i)

to co-operate with any other University, authority or association or any other public or private body having in view the promotion of purposes and objects similar to those of the University for such purposes as may be agreed upon on such terms and conditions as may, from time to time, be prescribed;

(j)

to establish and maintain colleges or institutions relating to engineering, technology and allied sciences;

(k)

to establish and maintain, laboratories, libraries, research stations and museums for teaching and research;

(l)

to institute teaching and research posts and to appoint persons to such posts;

(m)

to create administrative and other posts and to appoint persons to such posts;

(n)

to institute and award fellowships, scholarships, prizes and medals in accordance with the statutes;

(o)

to establish and maintain or recognize hostels for students of the University and residential accommodation for the staff of the University and to withdraw any such recognition;

(p)

to demand and receive payment of such fees and other charges as may be prescribed, from time to time;

(q)

to supervise and control hostels and to regulate and enforce discipline among the students of the University and to make arrangements for promoting their health and general welfare;

(r)

to act as trustees or managers for any property, legacy, endowment, bequest or gift for the purpose of education or research or otherwise in furtherance of the work and welfare of the University and to invest any funds representing the same, in accordance with the provisions of this Act and the statutes made thereunder;

(s)

to assess the needs of the State and the country in terms of subjects, fields of specialization, levels of education and training of technical manpower both on short and long term basis and to initiate necessary programmes to meet those needs;

(t)

to organize advanced studies and research programmes based on a deep understanding of the trends in engineering, technology and in allied sciences so that the profession will be ensured of men who are not only up-to-date, but also will be able to provide the lead;

(u)

to promote research, design and development activities that have a relevance to social needs and the development programmes of the nation;

(v)

to initiate measures to enlist the co-operation of industries and Governmental employers to provide complementary facilities; (w) to provide for continuous experimentation in imparting knowledge, organisation of training and preparation of text-books and other instructional materials;

(x)

to arrange for progressive introduction of continuous evaluate and re-orientation of the objectives in educational measurement (y) to further entrepreneurial ability among its students;

(z)

to educate the public with regard to the requirement of and opportunities, in the profession of engineering, technology and allied sciences and its responsibilities and service to society;

(a)

to enter into any agreement for the merger in the University of any other college or institution, and for taking over its rights, and liabilities, and for any other purpose not repugnant to the provisions of this Act;

(ab)

to do all such acts and things, whether incidental to the powers and functions aforesaid or not, as may be necessary or desirable to further the objects of the University;

[* * *]

[Clauses (ac), (ad), (ae), (af) and (ag) shall be omitted by Act No. 24 of 2010, dated 11.6.2010]

5A.

[

[Section 5A omitted by Act No. 24 of 2010, dated 11.6.2010.]

* * *]

6.

Admission to the University.

(1)

The University shall, subject to the provisions of the Act and the statutes, be open to all persons.

(2)

Nothing contained in sub-section (1) shall require the University-

(a)

to admit to any course of study any person who does not possess the prescribed academic qualification or standard;

(b)

to retain on the rolls of the University any student whose academic record is below the minimum standard required for the award of a degree, diploma or other academic distinction; or

(c)

to admit any person or retain any student whose conduct is prejudicial to the interest of the University or the rights and privileges of other students and teachers.

(3)

Subject to the provisions of sub-section (2), the Government may, by order, direct that the University shall reserve such percentage of seats therein for the students belonging to the Scheduled Castes, Scheduled Tribes and backward class as may be specified in such direction and where such direction has been given, the University shall make the reservation accordingly.

7.

Inspections and inquiry.

(1)

The Government shall have the right to cause an inquiry to be made by such person or persons as they may direct in respect of any matter connected with the University.

(2)

The Government shall, in every case, give notice to the University of their intention to cause an inquiry to be made and the University shall be entitled to be represented at such inquiry.

(3)

The Government shall communicate to the University their views with reference to the result of such inquiry and may, after ascertaining the opinion of the University thereon, advise the University upon the action to be taken and fix a time limit for taking such action.

(4)

The University shall, within the time limit so fixed, report to the Government the action taken or proposed to be taken on the advice tendered by the Government.

(5)

If the University does not take action within the time fixed or if the action taken by the University is in the opinion of the Government not satisfactory, the Government may, after considering any explanation offered or representation made by the University, issue such directions as they may deem fit and the University shall comply with such directions.

Chapter III

Officers of The University

8.

Officers of the University.

- The University shall consist of the following officers, namely:-

(1)

The Chancellor,

(2)

The Pro-Chancellor,

(3)

The Vice-Chancellor,

(4)

The Deans,

(5)

[The Directors;]

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

(6)

The Registrar,

(7)

The Finance Officer, and

[* * *]

[Clause (7A) omitted by Act No.24 of 2010, dated 11.6.2010.]

(8)

Such other persons as may be declared by the statutes to be officers of the University.

9.

Chancellor.

(1)

The Governor of the State shall be the Chancellor of the University.

(2)

[For the purpose of sub-section (1), the Committee shall consist of three persons of whom one shall be nominated by the Syndicate, one shall be nominated by the Government and one shall be nominated by the Chancellor:

Provided that no person shall be nominated to the Committee unless he is an eminent person in the field of judiciary, administration, education or industry:

Provided further that the person so nominated shall not be a member of any of the authorities of the University.]

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

(3)

No honorary degree or other distinction shall be conferred by the University upon any person without the approval of the Chancellor.

(4)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred or imposed on him by or under this Act.

[(4-A) The Vice-Chancellor shall not be removed from his office on the; ground of willful omission or refusal to carry out the provisions of this Act, or abuse of the powers vested in him except by an order of the Chancellor passed after due enquiry ordered by the Government, by such person who is or has been,-

(i)

a judge of the High Court; or

(ii)

an officer of the Government not below the rank of Chief Secretary to Government;

(iii)

a Vice-Chancellor of any University in the State of Tamil Nadu, as may be appointed by the Government in which the Vice-Chancellor shall have an opportunity of making his representation against such removal.]

10.

Pro-Chancellor.

(1)

The Minister administering the subject of technical education in the State of Tamil Nadu for the time being shall be the Pro-Chancellor of the University.

(2)

In the absence of the Chancellor, or during the Chancellor's inability to act, the Pro-Chancellor shall exercise all the powers and perform all the duties of the Chancellor.

11.

The Vice-Chancellor.

(1)

Every appointment of the Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the Committee referred to in sub-section (2) and such panel shall not contain the name of any member of the said Committee:

[Provided that if the Chancellor does not approve any of the persons in the panel recommended by the Committee, he may take steps to constitute another Committee, in accordance with sub-section (2), to give a fresh panel of three different names and shall appoint one of the persons named in the fresh panel as the Vice-Chancellor.]

[Inserted by Tamil Nadu Act 3 of 1992.]

(2)

For the purpose of sub-section (1), the Committee shall consist of three persons, of whom one shall be nominated by the Syndicate, one shall be nominated by the Academic Council, and one shall be nominated by the Chancellor: Provided that the person so nominated shall not be a member of any of the authorities of the University.

(3)

The Vice-Chancellor shall hold office for a period of three years and shall be eligible for re-appointment for not more than two successive terms:

Provided that-

(a)

the Chancellor may direct that a Vice-Chancellor whose term of office has expired, shall continue in office for such period, not exceeding a total period of one year, as may be specified in the direction;

(b)

the Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two month's notice, resign his office.

Provided also that, a person appointed as Vice-Chancellor shall retire from office if, during the term of his office or any extension thereof, he completes the age of [Seventy years]

[Substituted for 'sixty-five years' by Act No. 32 of 2012, dated 14.11.2012, w.e.f. 14.7.2012.]

.

(4)

When any temporary vacancy occurs in the office of the Vice-Chancellor or if the Vice-Chancellor is, by reason of absence or for any other reason, unable to exercise the powers and perform the duties of his office; the Syndicate shall, as soon as possible, make the requisite arrangements for exercising the powers and performing the duties of the Vice-Chancellor.

(5)

The Vice-Chancellor shall be a whole-time officer of the University and shall be entitled to such emoluments, allowances, and privileges as may be prescribed by the statutes.

12.

Powers and duties of the Vice-Chancellor.

(1)

The Vice-Chancellor shall be the principal executive and academic head of the University.

(2)

The Vice-Chancellor shall, in the absence of the Chancellor and Pro-Chancellor, preside the convocation of the University and confer degrees, diplomas or other academic distinctions upon persons entitled to receive them.

(3)

The Vice-Chancellor shall exercise control over the affairs of the University and shall be responsible for the due maintenance of discipline in the University.

(4)

The Vice-Chancellor shall ensure the faithful observance of the provisions of this Act and the statutes, ordinances, and regulations made thereunder.

(5)

In any emergency, which in the opinion of the Vice-Chancellor* requires immediate action to be taken, he shall, by order, take such action as he deems necessary and shall, at the earliest opportunity, report the action taken to such officer or authority or body as would have in the ordinary course dealt with the matter:

Provided that no such order shall be passed unless the person likely to be affected, has been given a reasonable opportunity of being heard.

(6)

Any person aggrieved by any order of the Vice-Chancellor under sub-section (5), may prefer an appeal to the Syndicate within thirty days from the date on which such order is communicated to him and the Vice-Chancellor shall give effect to the order passed by the Syndicate on such appeal.

(7)

[The Vice-Chancellor shall give effect to the decision of the Syndicate.]

[Substituted by Tamil Nadu Act 21 of 1986.]

(8)

The Vice-Chancellor shall be ex-officio Chairman of the Syndicate, the Academic Council and the Finance Committee. The Vice-Chancellor shall be entitled to be present at, and to address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(9)

The Vice-Chancellor shall convene meetings of the Syndicate, the Academic Council and the Finance Committee.

(10)

The Vice-Chancellor shall be responsible for the co-ordination and integration of teaching and research extension education and curriculum development.

(11)

The Vice-Chancellor shall exercise such other powers and perform such duties as may be prescribed by statutes.

13.

Deans and [Directors]

[Substituted for 'Chairmen' by Act No. 24 of 2010, dated 11.6.2010.]

.

- Every Dean and every [Director]

[Substituted for 'Chairman of a Faculty' by Act No. 24 of 2010, dated 11.6.2010.]

shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the statutes.

14.

Registrar.

(1)

The Registrar shall be a whole-time officer of the University appointed by the Syndicate for such period and on such terms as may be prescribed by statutes.

(2)

The Registrar shall exercise such powers and perform such duties as may be prescribed.

(3)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all process in such suits and proceedings shall be issued to and served on, the Registrar.

15.

Finance Officer.

(1)

The Finance Officer shall be a whole-time officer of the University appointed by the Syndicate for such period and on such terms as may be prescribed by statutes.

(2)

The Finance Officer shall exercise such powers and perform such duties as may be prescribed.

15A.

[

[Section 15-A omitted by Act No. 24 of 2010, dated 11.6.2010.]

* * *]

[Inserted by Act No. 24 of 2010, dated 11.6.2010.]

Chapter IV

Authorities of The University

16.

Authorities of the University.

- The authorities of the University shall be the Syndicate, Academic Council, the Finance Committee, Faculties and Board of Studies of each Faculty and such other bodies of the University as may, from time to time be declared by the statutes to be authorities of the University.

17.

Syndicate.

(1)

The Chancellor shall, as soon as may be, after the first Vice-Chancellor is appointed under Section 39 constitute the Syndicate.

(2)

[The Syndicate shall, in addition to the Vice-Chancellor, consist of the following members, namely:-

Class I - Ex-officio Members.

(a)

The Secretary to Government, in-charge of Higher Education;

(b)

The Secretary to Government, in-charge of Industries;

(c)

The Secretary to Government, in-charge of Information Technology;

(d)

The Secretary to Government, in-charge of Law;

(e)

The Director of Technical Education.

Class II - Other Members.

(a)

One member from among the Professors or Deans or Directors of the Mechanical, Aeronautical, Production and Automobile Engineering departments, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(b)

One member from among the Professors or Deans or Directors of the Electronic Communication Engineering, Information Technology and Computer Science departments, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(c)

One member from among the Professors or Deans or Directors of the Civil, Architecture, Electrical and Electronic Engineering, Environmental and Water Resources departments, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(d)

One member from among the Professors or Deans or Directors of the Chemical Engineering, Leather Technology, Food Technology, Bio-Technology departments, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(e)

One member from among the Professors or Deans or Directors of Science or Humanities or Management nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(f)

One member representing industries, public and private sectors, nominated by the Government;

(g)

One member representing Research Institutions having special knowledge and practical experience in engineering and technology, nominated by the Chancellor;

(h)

One member elected by the Members of the Legislative Assembly of the State from among themselves.

(3)

The Vice-Chancellor shall be the ex-officio Chairman of the Syndicate.

(4)

(i)

In case the Secretary to Government, in-charge of Higher Education or the Secretary to Government, in-charge of Industries or the Secretary to Government, in- charge of Information Technology or the Secretary to Government, in-charge of Law, is unable to attend the meetings of the Syndicate, for any reason, he may depute any officer of his department, not lower in rank than that of the Deputy Secretary to Government, to attend the meetings;

(ii)

In case the Director of Technical Education is unable to attend the meetings of the Syndicate, for any reason, he may depute any officer of the department, not lower in rank than that of the Deputy Director, to attend the meetings.

(5)

(a)

Save as otherwise provided, the members of the Syndicate, other than the ex-officio members, shall hold office for a period of three years and such members shall be eligible for election or nomination for another period of three years.

(b)

Where a member is elected or nominated to the Syndicate in a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Syndicate who is elected or nominated in his capacity as a member of a particular electorate or body, or the holder of a particular appointment, shall cease to be a member of the Syndicate from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be:

Provided further that where an elected or nominated member of the Syndicate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Syndicate ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Syndicate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(6)

When a person ceases to be a member of the Syndicate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Syndicate.

(7)

The members of the Syndicate shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(8)

A member of the Syndicate, other than ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member, and the resignation shall take effect from the date of its acceptance by the Chancellor.]

[Sub-sections (2), (3), (3-A), (4), (5) and (6) substituted by Act No. 24 of 2010, dated 11.6.2010.]

17A.

[Restriction for election or nomination to Syndicate and Academic Council in certain cases.

[Substituted by Tamil Nadu Act 41 of 1998.]

(1)

Notwithstanding anything contained in section 17 or section 18 or statute 9 of Schedule, any person who has completed two terms of three years each, continuously in any one or both of the following authorities of the University, namely:-

(i)

the Syndicate, and

(ii)

the Academic Council,

shall be eligible after a period of three years has elapsed from the date of his ceasing to be member for election or nomination to any of the above mentioned authorities:

Provided that for the purpose of this sub-section if a person was elected or nominated to one authority and such person became a member of another authority by virtue of the membership in the first mentioned authority, the period for which he held office in the first mentioned authority alone shall be taken into account.]

(2)

Nothing in sub-section (1) shall have application in respect of-

(i)

[ex-officio members referred to in section 17(2), Class-1; and

[Substituted by Anna University (Amendment) Act, 2001 (Tamil Nadu Act 26 of 2001).]

(ii)

ex-officio members referred to in clause (1) of Statute 9 of Schedule II.]

18.

Academic Council.

(1)

The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act and the statutes, have the control and general regulation of teaching and examination in the University and be responsible for the maintenance of the standards thereon.

(2)

The constitution of the Academic Council, the term of office of its members, its powers and functions and rules of procedures at its meetings shall be prescribed by the statutes.

19.

Faculties and Boards of Studies.

(1)

The University shall include Faculties of Engineering, Technology and Science and such other Faculties as may be prescribed by the statutes.

(2)

Each Faculty shall have a [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

who shall be appointed in such manner as may be prescribed.

(3)

Each Faculty shall comprise of such departments of teaching with such assignment of subject of study as may be prescribed.

(4)

There shall be a Board of Studies for each Faculty, the constitution and functions of which shall be such as may be prescribed.

(5)

The constitution and functions of the Faculties shall, in all other respects, be such as may be prescribed.

20.

Constitution of committees and delegation of powers.

- All the authorities of the University shall have power to constitute committees and to delegate to them such of their powers as they deem fit; such committees shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case, may deem fit.

Chapter V

Funds and Accounts

21.

General Fund.

- The University shall have a general fund to which shall be credited- I

(a)

its income from fees, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government, any State Government, the University Grants Commission or like authority, any local authority or any corporation owned or controlled by the Government; and

(c)

endowments and other receipts.

Explanation. - In this section, the expression "University Grants Commission" means the Commission established under section 4 of the University Grants Commission Act, 1956 (Central Act

30 of 1956

).

22.

Other funds.

- The University may have such other funds as may be prescribed by the statutes.

23.

Management of funds.

- The funds and all moneys of the University shall be managed in such manner as may be prescribed.

24.

Grants.

- The Government shall, every year, make non-lapsable lump-sum grants to the University as follows:-

(a)

a grant not less than the net expenditure incurred in the financial year immediately preceding the appointed day in respect of the activities of the institutions of engineering, technology and allied sciences which are transferred to the University;

(b)

a grant not less than the estimated expenditure on pay and allowances of the staff, contingencies, supplies and services of the University;

(c)

a grant to meet such additional items of expenditure, recurring and non-recurring as the Government may deem necessary for the proper functioning and development of the University.

25.

Finance Committee.

- The Syndicate shall constitute a Finance Committee constituting of the Vice-Chancellor and other members as may be prescribed by the statutes.

26.

Annual accounts.

(1)

The annual accounts shall be submitted to such examination and audit, as the Government may direct and a copy of the annual accounts and audit report shall be submitted to the Government.

(2)

The University shall settle objections raised in the audit and carry out such instructions as may be issued by the Government on the audit report.

(3)

The Government shall cause the annual accounts and the audit report to be laid before [the Legislative Assembly] [Substituted for the words 'both Houses of the Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.] together with their comments.

Chapter VI

Conditions of Service

27.

Pension, gratuity, etc.

(1)

The University shall institute for the benefit of its officers, teachers and other persons employed in the University such pension, gratuity, insurance and provident fund as it may deem fit, in such manner and subject to such conditions, as may be prescribed.

(2)

Where the University has so instituted a provident fund under sub-section (1), the Government may declare that the provisions of the Provident Funds Act, 1925 (Central Act 19 of 1925) shall apply to such fund as if the University were a local authority and the fund a Government Provident Fund.

(3)

The University may, in consultation with the Finance Committee, invest the provident fund amount in such manner, as it may determine.

28.

Conditions of service.

- Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions of service of officers, teachers and other persons employed in the University shall be such as may be prescribed.

Explanation. - For the purpose of this section, the word "officer" shall not include the Chancellor and the Pro-Chancellor.

Chapter VII

Statutes, Ordinances and Regulations

29.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

- (i)
the holding of convocation to confer degrees;
- (ii)
the conferment of honorary degree and academic distinctions;
- (iii)
the constitution, powers and functions of the authorities of the University;
- (iv)
the manner of filling vacancies among members of the authorities;
- (v)
the allowances to be paid to the members of the authorities and committees thereof;
- (vi)
the procedure at meetings of the authorities including the quorum for the transaction of business at such meetings;
- (vii)
the authentication of the orders or decisions of the authorities;
- (viii)
the formation of departments of teaching at the University and its constituent colleges;
- (ix)
the term of office and method of appointment and conditions of service of the officers of the University other than the Chancellor and the Pro-Chancellor;
- (x)
the qualifications of the teachers and other persons employed in the University [***]
[Words 'and affiliated colleges or institutions' omitted by Act No. 24 of 2010, dated 11.6.2010.]
;
- (xi)
the classification, the method of appointment and determination of the terms and conditions of service of teachers and other persons employed in the University;
[(xi-a) the powers to be exercised and the duties to be performed by the teachers and other persons employed in the University;]
[Inserted by Tamil Nadu Act 21 of 1986.]
- (xii)
the institution of pension, gratuity, insurance or provident fund for the benefits of the officers, teachers and other persons employed in the University;
- (xiii)
the institution of fellowships, scholarships, studentships, bursaries, medals and prizes and the conditions of award thereof;
- (xiv)
the establishment and maintenance of halls and hostels;
- (xv)
the conditions for residence of students of the University in the halls and hostels and the levy of fees and other charges for such residence;
- (xvi)
the conditions of registration of graduates and the maintenance of register thereof;
[* * *]
[Clauses (xvi-a) and (xvi-b) shall be omitted by Act No. 24 of 2010, dated 11.6.2010.]
- (xvii)

any other matter which is required to be or may be prescribed by the statutes.

30.

Statutes how made.

(1)

The first statutes shall be those as set out in schedule II.

(2)

The Syndicate may, from time to time, make statutes and amend or repeal the statutes in the manner hereinafter provided in this section.

(3)

The Academic Council may propose to the Syndicate the draft of any statute to be passed by the Syndicate and such draft shall be considered by the Syndicate at its next meeting:

Provided that the Academic Council shall not propose any amendment to any statute affecting the status, powers or constitution of any authority of the University, until such authority has been given an opportunity of expressing its opinion upon the proposal and any opinion so expressed shall be considered by the Syndicate.

(4)

The Syndicate may consider the draft proposed by the Academic Council under sub-section (3) and may either pass the draft statute or reject or return it with or without amendments to the Academic Council for reconsideration.

(5)

(a)

Any member of the Syndicate may propose to the Syndicate the draft of a statute and the Syndicate may either accept or reject the draft, if it relates to a matter not falling within the purview of the Academic Council.

(b)

In case such draft relates to a matter within the purview of the Academic Council, the Syndicate shall refer it for consideration to the Academic Council, which may, after following the procedure laid down in the proviso to sub-section (3), either report to the Syndicate that it does not approve the draft or submit the draft to the Syndicate in such form as the Academic Council may approve and the Syndicate may either pass with or without amendment or reject the draft.

(6)

A statute passed by the Syndicate shall be submitted to the Chancellor who may assent thereto or withhold his assent. A statute passed by the Syndicate shall have no validity until it has been assented to by the Chancellor.

31.

Ordinance.

(1)

Subject to the provisions of this Act and statutes, the ordinances of the University may provide for all or any of the following matters, namely:-

(i)

[the admission of the students to the University and its constituent colleges;]

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

(ii)

the courses of study leading to all degrees, diplomas and other academic distinctions of the University;

(iii)

the conditions under which the students shall be admitted to the courses of study leading to degrees, diplomas and other academic distinctions of the University;

(iv)

the conduct of examinations of the University and the conditions on which students shall be admitted to such examinations;

(v)

the manner in which exemptions relating to the admission of students to examinations may be given;

(vi)

the conditions and mode of appointment and duties of examining bodies and examiners;

(vii)

the maintenance of discipline among the students of the University;

(viii)

the fees to be charged for courses of study, research, equipment and practical training and for admission to the examinations for degrees, diplomas and other academic distinctions of the University; and

(ix)

any other matter which by this Act or the statutes is to be made or may be provided for by an ordinance.

(2)

Save as otherwise provided in this section, ordinances shall be made by the Academic Council.

(3)

All ordinances made by the Academic Council shall take effect from such date as may be fixed by the Academic Council, but every ordinance so made shall be submitted as soon as may be after it is made to the Syndicate and shall be considered by the Syndicate at its next meeting.

(4)

The Syndicate shall have power, by a resolution passed by a majority of not less than two-thirds of the members present at such meeting, to modify or cancel any such ordinance and such ordinance shall, from the date of such resolution, have effect in such modified form or be of no effect, as the case may be.

32.

Regulations.

(1)

The Syndicate and the Academic Council may make regulations consistent with the provisions of this Act, the statutes and the ordinances, for all or any of the other matters which by this Act and the statutes and ordinances are to be provided for by regulations and also for any other matter solely concerning such authorities.

(2)

Each of the authorities referred to in sub-section (1) shall make regulations providing for the giving of notice to the members thereof of the date of meeting and of the business to be considered at meetings and for the keeping of the proceedings of the meetings.

(3)

The Syndicate may direct the amendment in such manner as it may specify, of any regulation made under this section or the annulment of any regulation made thereunder by itself or by the Academic Council.

[Chapters VIII, VIII-A and VIII-B]

[Chapters VIII, VIII-A and VIII-B of the principal Act shall be omitted omitted by Act No. 24 of 2010, dated 11.6.2010.]

33. to 38.

[* * *]

Chapter IX

Transitory Provisions

39.

Appointment of the first Vice-Chancellor.

- Notwithstanding anything contained in sub-section (1) of section 11, within six months from the appointed day, the first Vice-Chancellor shall be appointed by the Government on a salary to be fixed by them, for a period not exceeding in the aggregate five years and on such other conditions as may be specified by the Government in this behalf.

40.

Appointment of the first Registrar.

- Notwithstanding anything contained in sub-section (1) of section 14, within three months from the appointed day, the first Registrar shall be appointed by the Government for a period not exceeding two years. The pay and allowances and other conditions of service of the first Registrar shall be such as may be fixed by the Government in this behalf.

Chapter X

Miscellaneous

41.

Annual report.

(1)

The annual report of the University shall be prepared under the direction of the Vice-Chancellor and submitted to the Syndicate at least one month before the annual meeting at which it is to be considered.

(2)

The Syndicate shall, after considering the annual report, forward a copy thereof to the Government.

42.

Validation of acts and proceedings.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of a vacancy or of any defect or irregularity in the appointment of a member of any authority or of other body of the University or of any defect or irregularity in any such act or proceeding not affecting the merits of the case or on the ground that the Syndicate did not meet once in every three months.

43.

Power to amend Schedule I.

(1)

The Government may, by notification, either, amend or add to [Schedule I]

[Substituted for 'Schedules I, I-A and I-B' by Act No. 24 of 2010, dated 11.6.2010.]

and upon the issue of such notification, [Schedule I]

[Substituted for 'Schedules I, I-A and I-B' by Act No. 24 of 2010, dated 11.6.2010.]

shall be deemed to be amended accordingly.

(2)

Every notification issued under sub-section (1) or under any other provisions of this Act shall, as soon as possible, after it is issued, be placed on the table of [the Legislative Assembly]

[Substituted for the words 'both Houses of the Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.]

and if, before the expiry of the session in which it is so placed, or the next session, [the Legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by the Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in any such notification or [the Legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by the Tamil Nadu Adaptation of Laws Order, 1987.]

that the notification should not be issued, the notification shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

44.

Tamil Nadu Act VII of 1923 not to apply.

(1)

On and from the appointed day, the provisions of the Chennai University Act, 1923 (Tamil Nadu Act VII of 1923) (hereinafter in this section referred to as the said Act), shall cease to apply to in respect of [the College of Engineering, Guindy, Chennai and the institutions specified in Schedule I]

[Substituted for 'the College of Engineering, Guindy, Chennai specified in Schedule I and the institutions in Schedule I-A' by Act No. 24 of 2010, dated 11.6.2010.]

-

(2)

Such cessor shall not affect-

(a)

the previous operation of the said Act; or

(b)

any penalty, forfeiture or punishment, incurred in respect of any offence committed against the said Act; or

(c)

any investigation, legal proceeding or remedy in respect of such penalty, forfeiture or punishment, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act, had not been passed.

(3)

Notwithstanding anything contained in sub-section (1), any statutes, ordinances and regulations made under the said Act and in force on the appointed day, shall, in so far as they are not inconsistent with the provisions of this Act, continue to be in force until they are repealed by statutes, ordinances and regulations made under this Act.

45.

[Power to remove difficulties.

[Inserted by Tamil Nadu Act 44 of 1979.]

- If any difficulty arises to the constitution or reconstitution of any authority of the University after the appointed day, or otherwise in giving effect to the provisions of this Act, the Government may by notification, make such provision, not inconsistent with the provisions of this Act as may appear to them to be necessary or expedient for removing the difficulty:

Provided that no such notification shall be issued after the expiry of three years from the date of establishment of the University under section 3.]

46.

[Power of Government to give directions.

[Section 46 inserted by Act No. 24 of 2010, dated 11.6.2010.]

- The Government may, from time to time, issue such directions to the University, as it may deem fit, for giving effect to the provisions of this Act and it shall be the duty of the University, to comply with such directions.]

[Schedule I]

[Schedules I, IA and IB substituted by Act No. 24 of 2010, dated 11.6.2010.]

[See Sections 2(b) and 3(3)]

I. All the Departments located in the Alagappa Chertiar College of Technology, Guindy, Chennai.

II. The Madras Institute of Technology, Chrompet, Chennai.

II

[See section 30(1)]

The Statutes of the University

Emoluments, terms and conditions of service of the Vice-Chancellor:

1. The emoluments and other terms and conditions of service of the Vice-Chancellor shall be as follows. -

(i)

There shall be paid to the Vice-Chancellor a salary of three thousand rupees per mensem and he shall be entitled, without payment of rent, to the use of a furnished residence throughout his term of office, and no charge shall fall on the Vice-Chancellor personally in respect of the maintenance of such residence.

(ii)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Syndicate with the approval of the Chancellor from time to time:

Provided that, where an employee of-

(a)

the University orals constituent college; or

(b)

any other University or college or institution maintained by, or affiliated to, that University, is appointed as Vice-Chancellor, he shall be allowed to continue to contribute to the provident fund to which he is a subscriber, and the contribution of the University shall be limited to what he had been contributing immediately before his appointment as Vice-Chancellor.

(iii)

The Vice-Chancellor shall be entitled to travelling allowances at such rates as may be fixed by the Syndicate.

(iv)

The Vice-Chancellor shall be entitled to leave on full pay one-eleventh of the period spent by him on active service.

(v)

The Vice-Chancellor shall also be entitled, on medical grounds or otherwise to leave without pay for a period not exceeding three months during the term of his office:

Provided that such leave may be converted into leave on full pay to the extent to which he is entitled to leave under sub-clause (iv).

2.

(1)

Every [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

shall be appointed by the Vice-Chancellor from among the Professors in the Faculty for a period of three years and he shall be eligible for re-appointment:

Provided that a [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

, on attaining the age of sixty years, shall cease to hold office as such:

Provided further that if at any time there is no professor in a Faculty', the Vice-Chancellor shall exercise the powers of the [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

of the Faculty'.

(2)

When the office of the [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

is vacant or when the [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. The [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

shall have such other functions as may be prescribed by ordinances.

(4)

The [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

shall have the right to be present and to speak at any meeting of the Boards of Studies or Committees of the Faculty, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

[* * *]

[St. 2A omitted by Act No. 24 of 2010, dated 11.6.2010.]

3.

(1)

The Registrar shall be a whole-time salaried officer of the University.

(2)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by [Regulations]

[Substituted by Tamil Nadu Act 21 of 1986.]

:

Provided that the Registrar shall retire on attaining the age of sixty years.

(3)

When the office of the Registrar is vacant, or when the Registrar is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(4)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff, as may be specified in the orders of the Syndicate and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increments:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (a).

(c)

In a case where the inquiry discloses that punishment beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Syndicate against an order of the Vice-Chancellor imposing any penalty.

(d)

No appeal under sub-section (b) or sub-clause (c) shall be preferred after the expiry of sixty days from the date on which the order appealed against was received by the appellant.

(5)

The Registrar shall be ex-officio Secretary of the Syndicate, the Academic Council, the Faculties and the Boards of Studies, but shall not be deemed to be a member of any of these authorities.

(6)

It shall be the duty of the Registrar:-

(a)

to be the custodian of the records, the common seal and such at the property of the University as the Syndicate shall commit to his charge;

(b)

to issue notices convening meetings of the Syndicate, the Academic Council, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committees appointed by the authorities of the University;

(c)

to keep the minute of all the meetings of the Syndicate, the Academic Council, the Faculties, the Board of Studies and of any Committees appointed by the authorities of the University;

(d)

to conduct the official correspondence of the Syndicate¹ and the Academic Council;

(e)

to supply to the Chancellor, copies of the agenda of the meeting of the authorities of the University as soon as they are issued and the minutes of such meetings; and

(f)

to perform such other duties as may be specified in these statutes the ordinances or the regulations or as may be required, from time to time, by the Syndicate or the Vice-Chancellor.

4.

(1)

The Finance Officer shall be a whole-time salaried officer of the University.

(2)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by the ordinances:

Provided that the Finance Officer shall retire on attaining the age of sixty years:

Provided further that the Finance Officer shall, notwithstanding his attaining the age of sixty years, continue in office until his successor is appointed and enter upon his office or until the expiry of a period of one year, whichever is earlier.

(3)

When the office of the Finance Officer is vacant or when the Finance Officer is by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(4)

The Finance Officer shall be ex-officio secretary of the Finance Committee, but shall not be deemed to be a member of such committee.

(5)

The Finance Officer shall,-

(a)

exercise general supervision over the funds of the University and shall advise the University as regards its financial

policy; and

(b)

perform such other financial functions as may be assigned to him by the Syndicate or as may be prescribed by these statutes or the ordinances:

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding such amount as may be prescribed without the previous approval of the Syndicate.

(6)

Subject to the control of the Syndicate, the Finance Officer shall-

(a)

hold and manage the property and investments of the University including trust and endowed property;

(b)

ensure that the limits fixed by the Syndicate for recurring and nonrecurring expenditure for a year not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(c)

be responsible for the preparation of annual accounts and the budget of the University and for their presentation to Syndicate;

(d)

keep a constant watch on the cash and bank balance and of investments;

(e)

watch the progress of the collection of revenue and advice on the methods of collection employed;

(f)

ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that stock-checking is conducted, of equipment and other consumable materials in all offices, special centres, specialised laboratories, constituent colleges and institutions maintained by the University;

(g)

call for explanation for unauthorized expenditure and for other financial irregularities and suggest disciplinary action against persons as fault; and

(h)

call from any office, centre, laboratory, constituent college or institution maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(7)

The receipt of the Finance Officer or of the person or persons duly authorized in this behalf by the Syndicate for any money payable to the University shall be sufficient discharge for payment of such money.

5.

(1)

Each Department shall have a Head who shall be a Professor and whose duties and functions and terms and conditions of appointment shall be prescribed by the ordinances:

Provided that if there is more than one Professor in any Department the Head of the Department shall be appointed in the manner prescribed by the ordinances:

Provided further that in a Department where there is no Professor [an Associate Professor or an Assistant Professor]

[Substituted for 'an Assistant Professor or a Reader' by Act No. 24 of 2010, dated 11.6.2010.]

may be appointed as Head of the Department in the manner prescribed by the ordinances:

Provided also that if there is no Professor, [Associate Professor or Assistant Professor]

[Substituted for 'Assistant Professor or Reader' by Act No. 24 of 2010, dated 11.6.2010.]

, in a Department, the Dean of the Faculty concerned shall act as the Head of that Department.

(2)

It shall be open to a Professor [to decline the offer of appointment as the Head of the Department.]

[Substituted for 'an Assistant Professor or a Reader' by Act No. 24 of 2010, dated 11.6.2010.]

(3)

A person appointed as the Head of the Department shall hold office as such for a period of three years and shall be eligible for re-appointment.

(4)

A Head of a Department may resign his office at any time during his tenure of office.

(5)

A Head of a Department shall perform such functions as may be prescribed by the ordinances.

6.

(1)

The Librarian shall be appointed by the Syndicate on the recommendation of the selection committee constituted for the purpose and he shall be a whole time officer of the University.

(2)

The Librarian shall exercise such powers and perform such duties as may be assigned to him by the Syndicate.

7. The powers and duties of the Syndicate shall be,-

(a)

to consider and review the financial requirements and approve the annual financial estimates of the University;

(b)

to provide for the administration of any funds placed at the disposal of the University for the purposes intended;

(c)

to arrange for the investment and withdrawal of funds of the University;

(d)

to borrow money subject to the approval of the Government for capital investments and to make suitable arrangements for its repayment;

(e)

to acquire, hold and dispose of property on behalf of the University;

(f)

to determine the form, provide for the custody, and regulate the use, of the common seal of the University;

(g)

to appoint such committees, either standing or temporary, as it may consider necessary and specify the terms of reference thereof subject to the provisions of the Act and these statutes;

(h)

to determine and regulate all questions of policy relating to the University in accordance with the provisions of the Act and these statutes;

(i)

to make financial provision for the instruction, teaching, research, advancement and dissemination of knowledge in such branches of learning and courses of study as may be determined by the Academic Council;

(j)

to provide for the establishment and maintenance of colleges, hostels, laboratories, and other facilities necessary for carrying out the purposes of the Act;

(k)

to provide for the institution and conferment of degrees, diplomas and other academic distinctions;

(l)

to provide for the institution, maintenance and award of scholarships, fellowships, studentships, medals, prizes and the like;

(m)

to accept trust, bequest, donation and transfer of any movable or immovable property on behalf of the University;

(n)

to enter into any contract on behalf of the University;

(o)

to make statutes and to amend or repeal the same; and

(p)

exercise such other powers and perform such other duties not inconsistent with the provisions of the Act or these statutes as may be necessary for carrying out the purposes of the Act.

8.

(1)

The Syndicate shall meet at such time and places and shall, subject to the provisions of clauses (2) and (3), observe such rules of procedure in regard to transaction of business at its meetings including the quorum at meetings as may be prescribed:

Provided that the Syndicate shall meet as least once in every three months.

(2)

The Vice-Chancellor or in his absence, any member chosen by the members present, shall preside at a meeting of the Syndicate.

(3)

All questions at any meeting of the Syndicate shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(4)

(a)

The Syndicate may, for purpose of consultation, invite any person having special knowledge or practical experience in any subject under consideration to attend any meeting. Such person may speak in, and otherwise take part in, the proceeding of such meetings, but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and travelling allowances as are admissible to a member of the Syndicate.

9. [Constitution of Academic Council.

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

- (1) The Academic Council shall consist of the following members, namely:-

Class I-Ex-Officio Members.

(a)

The Vice-Chancellor;

(b)

The Dean;

(c)

The Director of Library of the University.

Class II-Other Members.

(a)

Eight members from among the Professors of the University, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(b)

Three educationists having proficiency in matters relating to education, research and educational administration, general and technical, nominated by the Chancellor on the recommendation of the Government;

(c)

Three members from among the Chief Engineers or General Managers from the Departments of the State Government; Railways, Military Engineering Services, Defence, Post and Telegraphs, Telephones and other autonomous organizations in the State, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(d)

Three persons from private industries and research organizations having proficiency in the matter relating to industries and research, nominated by the Chancellor on the recommendation of the Government;

(e)

Three persons from public sector industries of the Central and State Departments in the State having proficiency in matter relating to industries and research, nominated by the Chancellor on the recommendation of the Government;

(f)

Three persons from Professional Engineering Societies or institutions or bodies or associations, nominated by the Chancellor on the recommendation of the Government;

(g)

Three persons of eminence from Small Scale Industries or Entrepreneurship Development Board or Apprenticeship Board of both Central and State Governments, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(h)

One person from among the teachers of each of the institutions given below, nominated by the Chancellor, on the recommendation of the Vice-Chancellor-

(i)

Indian Institute of Science, Bangalore,

(ii)

Indian Institute of Technology, Chennai,

(iii)

Indian Institute of Management, Bangalore, and

(iv)

National Institute of Technology, Tiruchirappalli;

(i)

Members of the Syndicate not included in any of the above items:

Provided that any Chairperson of a Board of Studies may be invited to attend a meeting if his special knowledge may be relevance to the items for discussion at the meeting.

(2)

(i)

In case the Secretary to Government, in-charge of Higher Education or the Secretary to Government, in-charge of Industries or the Secretary to Government, in-charge of Information Technology or the Secretary to Government, in-charge of Law, who is a member of the Academic Council by virtue of item (i) under Class II-Other members in Clause (1) is unable to attend the meetings of the Academic Council for any reason, he may depute any officer of his department, not lower in rank than that of the Deputy Secretary to Government, to attend the meetings.

(ii)

In case the Director of Technical Education who is a member of the Academic Council, by virtue of item (i) under Class II-Other members in Clause (1) is unable to attend the meetings of the Academic Council for any reason, he may depute any officer of the department, not lower in rank than that of the Deputy Director, to attend the meetings.

(3)

(a)

Save as otherwise provided, nominated member of the Academic Council shall hold office for a period of three years and such member shall be eligible for nomination for another period of three years.

(b)

Where a member is nominated to the Academic Council to a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Academic Council who is nominated in his capacity as a member of a particular body or the holder of a particular appointment, shall cease to be a member of the Academic Council from the date on which he ceases to be a member of that body or the holder of that appointment, as the case may be:

Provided further that where a nominated member of the Academic Council is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Academic Council ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be member of the Academic Council by virtue of his nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as a nominated member.

(4)

When a person ceases to be a member of the Academic Council, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Academic Council.

(5)

The members of the Academic Council shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(6)

A member of the Academic Council other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member and the resignation shall take effect from the date of its acceptance by the Chancellor.]

10. The powers and duties of the Academic Council shall be-

(a)

to exercise general control on teaching and other educational programmes and maintain and promote the standards thereof;

(b)

to make regulations and amend or repeal the same;

(c)

to make regulations-

(i)

regulating the admission of students to the University and the number of students to be admitted;

(ii)

regarding the courses of study leading to degrees, diplomas and other academic distinctions;

(iii)

regarding the conduct of examinations and maintenance and promotion of standards of education;

(iv)

prescribing equivalence of examinations, degrees, diplomas and certificates of other Universities, Colleges, Institutions and Boards;

(v)

regarding industrial training where such training forms part of the requirements for the degrees, diploma or other academic distinctions; and

(vi)

for the assessment, evaluation and grading of students' performance;

(d)

to advise the Syndicate on all academic matters including the control and management of libraries;

(e)

to make recommendations to the Syndicate for the institution of Professorship, [Associate Professorship]

[Substituted for 'Readership' by Act No. 24 of 2010, dated 11.6.2010.]

, Assistant Professorship and other teaching posts including posts in research and in regard to the duties and emoluments thereof;

(f)

to formulate, modify or revise schemes for the constitution or reconstitution of departments of teaching and research;

(g)

to make recommendations to the Syndicate regarding post-graduate teaching and research;

(h)

to make recommendations to the Syndicate regarding the qualifications to be prescribed for teaching in the University;

(i)

to make recommendation to the Syndicate for the conferment of honorary degrees or other distinctions;

(j)

to review and act upon the proposals of Boards of Studies in formulating rules, regulations, syllabi and methods of evaluation, introduction of new courses and modification of existing courses;

(k)

to make recommendations to the Syndicate regarding institution of fellowships and scholarships;

(l)

to recommend to the Syndicate measures for promoting collaboration between industries and Governmental employees on the one hand and the University on the other;

(m)

to delegate to the Vice-Chancellor or to any of the committees of the Academic Council, any of its powers;

(n)

to assess and make recommendations laying down standards of accommodation, equipment, library, maintenance and other physical facilities required for each faculty; and

(o)

to exercise such other powers and perform such other duties as may be prescribed.

11. [(1) The Finance Committee shall consist of the following members, namely:-

(a)

the Vice-Chancellor;

(b)

the Secretary to Government, in-charge of Finance;

(c)

the Secretary to Government, in-charge of Higher Education;

(d)

one member nominated by the Syndicate from among its members.

(1-A) If for any reasons the Secretary to Government, in-charge of Finance or the Secretary to Government, in-charge of Higher Education is unable to attend the meetings of the Finance Committee, he may depute any officer of his department not lower in rank than that of the Deputy Secretary to Government to attend the meetings.]

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

(2)

The Vice-Chancellor shall be the ex-officio [Dean]

[Substituted for 'Chairman' by Act No. 24 of 2010, dated 11.6.2010.]

and the Finance Officer shall be the ex-officio Secretary to the Finance Committee¹

(3)

All the members of the Finance Committee, other than ex-officio members shall hold office for a period of three years.

(4)

The Finance Committee shall meet at least twice every year to examine the accounts and to scrutinize proposals for expenditure.

(5)

The annual accounts and the financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and, thereafter, submitted to the Syndicate for approval.

(6)

The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University which, in the case of productive works, may include the proceeds of loans.

(7)

The Finance Committee shall-

(a)

review the financial position of the University, from time to time;

(b)

make recommendation to the Syndicate on every proposal involving investment or expenditure for which no provision has been made in the annual financial estimates or which involves expenditure in excess of the amount provided for in the annual financial estimates;

(c)

prescribe the methods and procedure and forms for maintaining the accounts of the University, constituent colleges and institutions;

(d)

make recommendation to the Syndicate on all matters relating to the finances of the University; and

(e)

perform such other functions as may be prescribed.

12. All casual vacancies among the members (other than ex-officio members) of-

(i)

the Syndicate, and

(ii)

any other authority or other body of the University shall as soon as convenient may be filled-

(a)

in a case falling under clause (i), by the Vice-Chancellor; and

(b)

in a case falling under clause (ii), by the person or body who or which nominated the member whose place has become vacant and the person nominated under this statute to a casual vacancy shall be a member of the Syndicate or other authority or other body of the University for the remainder of the term for which the member in whose place he is nominated would have held office:

Provided that no casual vacancy shall be filled, if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

13. [Selection Committee.

[Substituted by Act No. 24 of 2010, dated 11.6.2010.]

- (1) There shall be a Selection Committee for making recommendations to the Syndicate for appointment to the posts of teachers.

(2)

The Selection Committee for appointment to the posts specified in subsection (1) shall consist of the Vice-Chancellor, a nominee of the Chancellor, a nominee of the Government and such other persons as may be prescribed:

Provided that the selection for such appointment by the Selection Committee shall be made in accordance with the guidelines that may be issued by the University Grants Commission or other agencies concerned in relation to such appointment.

(3)

The Vice-Chancellor shall preside at the meetings of a Selection Committee.

(4)

The meetings of a Selection Committee shall be convened by the Vice-Chancellor.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the ordinances.

(6)

If the Syndicate is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Chancellor for final orders.

(7)

Appointments to temporary posts or vacancies shall be made in the manner indicated below:-

(i)

If the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing provisions:

Provided that if the Vice-Chancellor is satisfied that in the interest of work it is necessary to fill the vacancy, the appointment may be made on a temporary basis by a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six months;

(ii)

If the temporary vacancy is for a period less than a year, appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean of the Faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and Head of the Department, the Selection Committee may consist of two nominees of the Vice-Chancellor:

Provided further that in case of sudden casual vacancies in teaching posts caused by death or any other reason, the

Dean may, in consultation with the Head of Department concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment;

(iii)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under this Act, be continued in service on such temporary employment unless he is subsequently selected by a regular Selection Committee, for a temporary or a permanent appointment, as the case may be.]

Notwithstanding anything contained in statute 13, the Syndicate may invite a person of high academic distinction and professional attainments to accept a post of Professor in the University on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

The Syndicate may appoint a teacher or any other academic staff working in any other University or organisation for undertaking a joint project in accordance with the manner laid down in the ordinances.

The Syndicate may appoint a person selected in accordance with the procedure laid down in statute 13 for a fixed tenure on such terms and conditions as it deems fit.

Notwithstanding anything contained in the Act and these statutes, the first Vice-Chancellor shall have power to appoint such officers, teachers and other persons as may be necessary.

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the authorities of the University specified in section 16 of the Act within one year after the appointed day or such longer period not exceeding two years as the Government may, by notification, specify.

The first Vice-Chancellor shall make such rules, as may be necessary, for the functioning of the University.

The authorities constituted under clause (1) shall commence to perform their functions on such date or dates, as the Government may, by notification, specify.

It shall be the duty of the first Vice-Chancellor to make, with the approval of the Chancellor, such statutes and regulations, as may be necessary and submit them to the respective authorities competent to deal with them for their disposal. Such statutes and regulations, when framed, shall be published in the Tamil Nadu Government Gazette.

Notwithstanding anything contained in this Act and these statutes and until such time an authority is duly constituted, the first Vice-Chancellor may, appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties of such Authority under the Act and these statutes.

Certain provision of the Madras University, Annamalai University and Perarignar Anna University of Technology (Amendment) Act, 1982 (Tamil Nadu Act 11 of 1982) Not incorporated in the Principal Act.

12. Removal of doubts. - For the removal of doubts, it is hereby declared that notwithstanding anything contained in the 1923 Act, the 1929 Act or the 1978 Act as amended by this Act every member of the Senate. Syndicate or Academic Council, as the case may be, elected or nominated:-

(i)

in the case of the Madras University, before the 1st December 1981, shall continue to be such member for the period for which he would have continued as such member but for the amendments made to the 1923 Act by part II of this Act, and;

(ii)

in the case of Annamalai University and the Perarignar Anna University of Technology, before the 21st December 1981, shall continue to be such member for the period for which he would have continued as such member but for the amendments made on the 1928 Act by Part III or the 1978 Act by Part IV of this Act:

Provided that nothing contained in this section shall be constructed as enabling any member referred to therein to continue as a member of any of the authorities in any of the said Universities of which he may happen to be a member by virtue of his membership of the Senate, Syndicate or Academic Council, as the case may be, after he ceases to be a member of the Senate, Syndicate or Academic Council as the case may be.

Certain proceedings to hold elections to be void. - (1) Every action taken and every proceedings commenced on or after 1st December 1981 but before the 21st December 1981. to hold election to the Senate Syndicate or Academic Council of the Madras University shall be deemed to be null and void and accordingly fresh action or proceedings shall hereafter be taken in accordance with the provisions of the 1923 Act as amended by this Act.

(2)

For the removal of doubts, it is hereby declared that notwithstanding anything contained in the 1923 Act as amended by this Act. every member who ceases to be a member of the Senate Syndicate or Academic Council by reason of the

operation or sub-section (1) shall cease to be a member of-

(i)

the Syndicate or the Academic Council, as the case may be, to which he was elected in his capacity as a member of the Senate; and

(ii)

the Syndicate to which he was elected in his capacity as a member of the Academic Council and to which Council he was elected in his capacity as a member of the Senate, with effect on and from the date on which he ceases to be member of the Senate or Academic Council by reason a sub-section (1).

Repeal and Saving. - (1) the Madras University, Annamalai University and Perarignar Anna University of Technology (Amendment) Ordinance, 1981 (Tamil Nadu Ordinance 18 of 1981) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the 1923 Act, the 1929 Act or the 1978 Act as amended by the said Ordinance shall be deemed to have been done or taken under the 1923 Act the 1929 Act or the 1978 Act, as the case may be, as amended by this Act.

Removal of doubts. - For the removal of doubts, it is hereby declared that members of the authorities of the Chennai, Madurai-Kamaraj, Bharathiar, Bharathidasan, Manonmaniam Sundaranar, Periyar University elected or nominated or otherwise as such members under the Chennai University Act, 1923 (Tamil Nadu Act VII of 1923), the Madurai-Kamaraj University Act, 1965 (Tamil Nadu Act 33 of 1965), the Bharathiar University Act, 1981 (Tamil Nadu Act 1 of 1982), the Bharathidasan University Act, 1981 (Tamil Nadu Act 2 of 1982), the Manonmaniam Sundaranar University Act. 1990 (Tamil Nadu Act 31 of 1990) or the Periyar University Act, 1997 (Tamil Nadu Act 45 of 1997

), as the case may be, from the colleges or institutions deemed to have been affiliated to the Anna University under sub-section (5) of section 38-A of the Anna University Act, 1978 (Tamil Nadu Act 30 of 1978

) and holding office as such members, in any of the authorities of the University concerned immediately before the date of the commencement of the Anna University (Amendment) Act, 2001 shall continue to be such members till the term of office expires.

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